

DEFAMATION

MEANING

Defamation is a publication of a statement, which tends to lower a person in the estimation of right thinking members of the society generally or which makes them shun or avoid that person.

ESSENTIAL OF DEFAMATION

- FALSE AND DEFAMATORY STATEMENT

The plaintiff need not prove the falsity of the statement. It would be sufficient to prove that the statement could damage one's reputation.

A defamatory statement may be oral, or in writing or printed or by the exhibition of some picture, statue, and effigy or by some conduct.

- REFERENCE TO THE PLAINTIFF

A defamatory matter may be communicated through a letter, pamphlet, cardboard, cartoon, caricature, book, or a gramophone record, a tape-recorder, a talking picture or a photograph, or by a television or video program or radio broadcasting, or by a telegram or a telephonic message, a cassette, a lecture or by displaying an effigy or by gestures and other means and methods.

- PUBLICATION

The statement must be published to a person other than the plaintiff alone. It is not actionable in civil law merely to make a defamatory statement to the plaintiff alone out of ear-shot of a third person, nor to write a letter to the plaintiff containing defamatory material.

SOME SITUATIONS, WHICH WILL AMOUNT TO THE PUBLICATION

1. Words written on a postcard or open message.
2. Defamatory statements placed in an envelope and addressed to the wrong person.

3. Speaking in a loud voice about the plaintiff so that people nearby can overhear
4. Sending a letter to the plaintiff in circumstances when it is likely to be opened by a third party
5. Allowing unauthorized defamatory statements to remain on one's premises.
6. Making a statement which carries the natural consequence of being repeated by someone else.

TYPES OF DEFAMATION:

- Slander (Defamatory statement): A statement that will adversely affect the plaintiff's reputation. The statement must be either alleging factual information or stating an opinion that is likely to be interpreted as having a factual basis (e.g., merely calling someone mean and nasty would not generally be considered a defamatory statement).
- Libel (Publication): For publication to occur, someone other than the plaintiff (a third party) must hear or read the defamatory statements. Intent is not a factor; publication can occur through the defendant's negligence.

DEFENCES TO DEFAMATION

There are five major defenses to defamation.

1. Truth: Always a defense in matters of private concern. For matters of public concern, the plaintiff has the burden to prove falsity as an element of the claim.
2. Consent: A defense in all defamation matters. If the defendant has permission to make the defamatory statements, the plaintiff cannot support a valid claim.
3. Humor: There is a first amendment defense related to humor if the defendant can prove that the audience believed the statements were made in jest.

4. Absolute privilege: Applies in very limited circumstances. In general, absolute privilege exempts persons from liability for potentially defamatory statements made:

- during judicial proceedings
- by high government officials
- by legislators during legislative debates
- during political broadcasts or speeches, and
- in between spouses.

5. Qualified privilege: Other types of communications are subject to what is called a qualified privilege, meaning that the person making the allegedly defamatory statement may have had some right to make that statement.

If a qualified privilege applies to a statement, it means that the person suing for defamation must prove that the person who made the defamatory statement acted intentionally, recklessly, or with

malice, hatred, spite, ill will or resentment, depending on your state's law.

Just some of the statements for which a qualified privilege applies are:

- statements made in governmental reports of official proceedings
- statements made by lower government officials such as members of town or local boards
- citizen testimony during legislative proceedings
- statements made in self-defense or to warn others about a harm or danger
- certain types of statements made by a former employer to a potential employer regarding the employee, and
- published book or film reviews that constitute fair criticism.